

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 2112 By: Murdock of the Senate
3 and
4 Newton of the House
5
6

7 An Act relating to open pasture roads; amending
8 Section 1, Chapter 191, O.S.L. 2024 (4 O.S. Supp.
9 2025, Section 116), which relates to open pasture
10 road designations; modifying definition; modifying
11 requirements for designation of an open pasture road;
12 removing certain time limitation; granting certain
13 authority to boards of county commissioners; updating
14 statutory language; and providing an effective date.

13 AUTHORS: Remove Representative Newton as principal House author and
14 substitute with Representative Worthen.

15 Add as coauthor Representative Newton.
16

17 AMENDMENT NO. 1. Strike the title, enacting clause, and entire bill
18 and insert:

19 "An Act relating to open pasture roads; amending
20 Section 1, Chapter 191, O.S.L. 2024 (4 O.S. Supp.
21 2025, Section 116), which relates to open pasture
22 road designations; modifying definition; modifying
23 requirements for designation of an open pasture road;
24 removing certain time limitation; granting certain
authority to boards of county commissioners; updating
statutory language; and providing an effective date.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. AMENDATORY Section 1, Chapter 191, O.S.L.
3 2024 (4 O.S. Supp. 2025, Section 116), is amended to read as
4 follows:

5 Section 116. A. As used in this section:

6 1. "Cattle crossing signage" means a sign in a ~~twenty-four (24)-~~
7 ~~inch~~ twenty-four-inch diamond shape that depicts a black cow graphic
8 on a yellow background; and

9 2. "Open pasture road" means a road maintained by a county,
10 where the land on both sides of the road is owned or leased by the
11 same owner or lessee; and ~~a~~ such roadway is without fencing.

12 B. Any public road, as defined in Section 232 of Title 69 of
13 the Oklahoma Statutes, in whole or in part, that is maintained by a
14 county and that meets the following conditions ~~by November 1, 2025,~~
15 shall be designated as an open pasture road:

16 1. Cattle guards have been installed at the access points of
17 such road or part thereof; and

18 2. ~~The land on either side of the road or part thereof to be~~
19 ~~designated is owned by a single party; and~~

20 3. ~~There is no fencing erected on such land on either side of~~
21 ~~the road~~ Cattle are allowed to be unrestrained or to run at large
22 through such roads.

23 It shall be the responsibility of the property owner to notify
24 the board of county commissioners that the roadway is eligible to be

1 designated as an open pasture road. Such notification shall state
2 the proposed action and clearly show on a map the location and
3 terminals of the road. The map shall also demonstrate that the
4 property where the road is located belongs to the property owner
5 requesting such designation.

6 C. The board of county commissioners shall cause the erection
7 of cattle crossing signage at the terminals of the open pasture
8 road. The cost associated with such signage shall be provided by
9 the property owner requesting such designation.

10 D. Neither the property owner nor the owner of livestock that
11 are on property where an open pasture road is located shall be
12 liable for damages to any motor vehicle or occupants thereof caused
13 by collision with livestock on a designated open pasture road.

14 E. ~~Only a public road meeting the requirements of subsection B~~
15 ~~of this section on November 1, 2025, may be designated as an open~~
16 ~~pasture road. After such date, even if conditions on a property~~
17 ~~change to meet the requirements of subsection B of this section,~~
18 ~~such property may not be designated as~~ The board of county
19 commissioners shall have authority to designate an open pasture
20 road.

21 F. Once annually, the owner of a property where an open pasture
22 road is located shall provide notice to the board of county
23 commissioners demonstrating that the property continues to meet the
24 requirements of subsection B of this section. Such notice shall

1 also include an indication that the property owner desires such
2 designation to continue. If such property owner indicates that ~~they~~
3 the owner no longer ~~desire~~ desires for such designation to continue,
4 or if the notice demonstrates that the property no longer meets any
5 of the conditions required by subsection B of this section, the road
6 shall lose the designation and the owner of such property shall have
7 thirty (30) days after the board of county commissioners receives
8 such notice to ensure any livestock on the property are fenced out
9 of the roadway.

10 SECTION 2. This act shall become effective November 1, 2026."

11 Passed the House of Representatives the 28th day of April, 2026.

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14 _____
Presiding Officer of the House of
Representatives

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16 Passed the Senate the ____ day of _____, 2026.

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18
19 _____
Presiding Officer of the Senate

1 ENGROSSED SENATE
2 BILL NO. 2112

By: Murdock of the Senate
and
Newton of the House

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6 An Act relating to open pasture roads; amending
7 Section 1, Chapter 191, O.S.L. 2024 (4 O.S. Supp.
8 2025, Section 116), which relates to open pasture
9 road designations; modifying definition; modifying
10 requirements for designation of an open pasture road;
11 removing certain time limitation; granting certain
12 authority to boards of county commissioners; updating
13 statutory language; and providing an effective date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 3. AMENDATORY Section 1, Chapter 191, O.S.L.
16 2024 (4 O.S. Supp. 2025, Section 116), is amended to read as
17 follows:

18 Section 116. A. As used in this section:

19 1. "Cattle crossing signage" means a sign in a ~~twenty-four (24)-~~
20 ~~inch~~ twenty-four-inch diamond shape that depicts a black cow graphic
21 on a yellow background; and

22 2. "Open pasture road" means a road maintained by a county~~+~~
23 where the land on both sides of the road is owned or leased by the
24 same owner or lessee~~+~~ and ~~a~~ such roadway is without fencing.

1 B. Any public road, as defined in Section 232 of Title 69 of
2 the Oklahoma Statutes, in whole or in part, that is maintained by a
3 county and that meets the following conditions by November 1, 2025,
4 shall be designated as an open pasture road:

5 1. Cattle guards have been installed at the access points of
6 such road or part thereof; and

7 ~~2. The land on either side of the road or part thereof to be~~
8 ~~designated is owned by a single party; and~~

9 ~~3. There is no fencing erected on such land on either side of~~
10 ~~the road~~ Cattle are allowed to be unrestrained or to run at large
11 through such roads.

12 It shall be the responsibility of the property owner to notify
13 the board of county commissioners that the roadway is eligible to be
14 designated as an open pasture road. Such notification shall state
15 the proposed action and clearly show on a map the location and
16 terminals of the road. The map shall also demonstrate that the
17 property where the road is located belongs to the property owner
18 requesting such designation.

19 C. The board of county commissioners shall cause the erection
20 of cattle crossing signage at the terminals of the open pasture
21 road. The cost associated with such signage shall be provided by
22 the property owner requesting such designation.

23 D. Neither the property owner nor the owner of livestock that
24 are on property where an open pasture road is located shall be

1 liable for damages to any motor vehicle or occupants thereof caused
2 by collision with livestock on a designated open pasture road. If
3 property is damaged, the driver of the motor vehicle shall be liable
4 for such damages.

5 ~~E. Only a public road meeting the requirements of subsection B~~
6 ~~of this section on November 1, 2025, may be designated as an open~~
7 ~~pasture road. After such date, even if conditions on a property~~
8 ~~change to meet the requirements of subsection B of this section,~~
9 ~~such property may not be designated as~~ The board of county
10 commissioners shall have authority to designate an open pasture
11 road.

12 F. Once annually, the owner of a property where an open pasture
13 road is located shall provide notice to the board of county
14 commissioners demonstrating that the property continues to meet the
15 requirements of subsection B of this section. Such notice shall
16 also include an indication that the property owner desires such
17 designation to continue. If such property owner indicates that ~~they~~
18 the owner no longer ~~desire~~ desires for such designation to continue,
19 or if the notice demonstrates that the property no longer meets any
20 of the conditions required by subsection B of this section, the road
21 shall lose the designation and the owner of such property shall have
22 thirty (30) days after the board of county commissioners receives
23 such notice to ensure any livestock on the property are fenced out
24 of the roadway.

SECTION 4. This act shall become effective November 1, 2026.

Passed the Senate the 26th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives